

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

October 11, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne (arriving at 6:04 p.m. following the vote on Consent Agenda), Mr. Spiker and Mr. Valdez. Absent: Mr. Brown and Mr. Pierson. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Valdez, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #15(c) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 27, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on October 4, 2010. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne city map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to HI Heavy Industrial District for Lots 8 & 9, Block 1, Cheyenne Business Parkway, First Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of Progress Circle and Campstool Road)." Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Mr. Spiker. Ms. Case called a point of order due to a quorum not being present at the Public Services Committee meeting. Upon inquiry from Mayor Kaysen, Ms. Case verified the purpose of her point of order was based on her position that a quorum of the Public Services Committee was not present at the time the meeting was scheduled to begin, nor when the meeting was called to order at a later time (City Clerk's note: Meeting scheduled to begin at 12:00 p.m. on Oct. 5, 2010 did not convene until 12:16 p.m.), and that three members constitutes a quorum. Mayor Kaysen confirmed the Committee meeting was called to order later than the scheduled time and that three Council members were present, and requested Dan White, City Attorney, provide his opinion on the issue of whether a quorum was present at the meeting. Mr. White advised he had

reviewed some standard policies of the City Council adopted in 2002 and that one policy relates to when a quorum is not present at the time a standing committee of the City Council meets. He stated the policy provides that the Council's executive assistant has the option of contacting other City Council members and requesting their attendance at the meeting in the absence of a committee member in order to have a quorum present. He noted this was the situation that occurred at the Public Services Committee meeting and that Mr. Spiker was contacted and requested to attend the meeting at which time Mr. Collins and Dr. Rinne were present. Mr. White stated his belief that the policy also provides that the Council member who then attends the standing committee meeting has the right to vote on any pending matters before the committee. He expressed his legal opinion that there was a quorum present at the time the meeting commenced, however, there was not a quorum at 12:00 p.m., the time the meeting was scheduled, and advised, under Robert's Rules of Order, that the Mayor has the right to state whether the point of order is well taken or not well taken, or the Mayor can allow the City Council itself to rule on the point of order if the Mayor feels there is doubt regarding the matter. He further advised if the matter is submitted to a vote of the City Council itself, the question might be whether the Council rejects the recommendations of the Public Services Committee on agenda items as reported by Mr. Collins. In addition, since standing committees are only a recommending body, even if City Council chooses to reject the recommendations, Mr. White expressed his belief that the City Council could proceed to consider the agenda matters. During further explanation on the point of order that she raised, Ms. Case referenced a previous incident in 2008 occurring at a standing committee meeting involving a Council member, who was not assigned as a member of the committee, who requested to be part of the committee and was not allowed to participate in the committee members' discussion or vote. She noted the City requested and paid for legal research and an opinion on the issue from a local attorney at the time, and provided Mr. White with a copy of the opinion. Following review of the opinion and upon receiving additional information from Ms. Case on circumstances involved in the 2008 incident, Mr. White stated the previous 2008 situation appeared to be slightly different as the opinion addresses a former member of Council, who was not an assigned member of the committee, appearing at the committee meeting and wishing to be involved in Committee members' debate and voting, and that the current issue being discussed pertained to a Council member being contacted and requested to attend a Committee meeting for purposes of a quorum who then, under the Council's policy, is allowed to debate and vote. Further information was provided by Ms. Case and included recitation of the outside legal counsel's interpretation of the phrase "elected official" contained in the opinion and involving City Code Section 2.04.145. Following comments by other members of City Council relative to standing committees' composition involving a quorum, committee member assignments and purpose of the 2008 outside legal opinion, Mr. White reiterated his position that the 2008 legal opinion dealt with a separate issue and his opinion that a quorum was present at the Public Services Committee meeting in question. Linda Allard, agent for EchoStar, requested the governing body move forward with the vote on the zone change ordinance on third reading, whether with or without, if allowed, a recognized recommendation from the Public Services Committee meeting. Upon inquiry as to whether postponement of the item for two weeks would affect EchoStar's project, she advised a two week postponement, at this time, would not affect their current plans for development. Comments followed on those Public Services Committee members present at the scheduled time of the meeting, Robert's Rules of Order and recommendations from a committee, and reason for the committee meeting starting at a time later than scheduled. Mayor Kaysen

recognized and reviewed the information that had been presented and discussed relative to the point of order that had been raised, and ruled the point of order was not well taken and would not be accepted. Comments were made in appreciation of EchoStar's presence in Cheyenne, its commitment to the community and support for its expansion plans, and zoning uses allowed for the property pursuant to information contained in the staff report referencing past zoning action for a proposed use as an early childhood center that has not moved forward in development. James Perot McNeil spoke in favor of discussing the item at another Public Services Committee meeting to eliminate any procedural confusion with Mayor Kaysen clarifying the ordinance had been previously reviewed at two committee and two City Council meetings. Ms. Allard requested Council move forward with approval of the ordinance. Comment followed regarding the prior zone change from HI to CB and the reason for changing it back to an HI zone. Motion carried. Voting "yes" – all members of the governing body present. (#3908)

"An Ordinance creating Chapter 17.116.151 of Title 17, Zoning, of the Cheyenne City Code pertaining to water hauler truck temporary loading sites." Matt Ashby, Planning Services Director, reviewed the purpose of the ordinance in conjunction with recent oil exploration work and staff's initial belief that timeliness for the ordinance to enact emergency-type regulations was needed, and stated recently current location options had been made available for water haulers to access water which has diminished the immediacy to act upon the ordinance. He requested the item be withdrawn from the agenda to allow for a hearing process and review and recommendation by the Planning Commission, indicating following that process the item may be re-introduced on the agenda. Dale Steenbergen, Director, Cheyenne Chamber of Commerce, speaking on behalf of the Chamber and LEADS, expressed concern with the proposed ordinance section relating to fees to be assessed to water hauler companies. He requested as the item moves forward in the process that review be made relative to equitable fees that may be imposed on water hauler companies vs. other businesses contributing to traffic in the community. Mayor Kaysen explained the agenda and meeting process if the item were withdrawn and re-introduced at a later date following a hearing and recommendation by the Planning Commission. Reporting for Finance Committee, Mr. Valdez moved to approve on second reading. Motion to approve died due to lack of a second to the motion.

"A Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road)." Mr. Collins moved to adopt, seconded by Mr. Spiker. Ms. Case called a point of order due to a quorum not being present at the Public Services Committee meeting, explaining the replacement Council person who participated in the meeting was not a committee member, and requesting the recommendation from the committee on the agenda item not be accepted and that the governing body move forward on the item without a committee recommendation. Upon inquiry by Mayor Kaysen, Ms. Case noted that her comments on the previous point of order she raised earlier in the meeting also pertained to the current point of order. Mayor Kaysen ruled the point of order was not well taken based upon information provided and discussion held on the previous point of order. Motion carried. Voting "yes" – all members of the governing body present. (#5245)

[CA] “A Resolution repealing Resolution #5164; creating a new resolution establishing golf course user fees and categories for the Airport Golf Course and Kingham Prairie View Golf Course; and providing for the division of revenues from said fees to be deposited between the General and Capital Improvement Funds.” Motion (per Consent Agenda) carried. (#5246)

[CA] “A Resolution re-appropriating the fiscal year 2011 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Lumber, a replat of vacated portions of Lots 3, 4 & 5, Block 29; and Lots 1 & 2, Block 30; and McComb Avenue, Original City of Cheyenne; and a portion of Lot 3, Section 36, T.14N., R.67W., 6th P.M., Cheyenne, Wyoming (located at the northwest corner of the intersection of Cribbon Avenue and W. 27th Street)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 8th Filing, situated in a portion of the SW¼ NW¼ of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Ogden Road, between Apache Street and Plain View Road)” -- referred to Public Services Committee (sponsor - Ms. Ash).

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Shelter Services. Rick Collard, Executive Director, Cheyenne Animal Shelter, stated the Animal Shelter Board of Directors were aware of and are willing to accept the same 12.2% funding cut made to other City departments and agencies due to the economic situation. Mr. Valdez moved to approve, seconded by Mr. Spiker. Mr. Valdez moved to postpone to Oct. 25, 2010, seconded by Mr. Spiker. It was clarified the reason for the postponement was because there was no representative present to discuss the item at Finance Committee. Upon inquiry, Mr. Collard noted that use of funding from their Foundation may be utilized to supplement the reduced funding level. Motion to postpone failed. Voting “no” – all members of the governing body present. Main motion carried. Voting “yes” – all members of the governing body present. (#5596)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control Services. Rick Collard, Executive Director, Cheyenne Animal Shelter, stated the Animal Shelter Board of Directors were aware of and are willing to accept the same 12.2% funding cut made to other City departments and agencies due to the economic situation. Mr. Valdez moved to approve, seconded by Mr. Spiker. Mr. Valdez moved to postpone to Oct. 25, 2010, seconded by Mr. Spiker. Motion to postpone failed. Voting “no” – all members of the governing body present. Upon inquiry, it was advised the reduced funding amount was approximately \$71,000 from the control side. Mr. Collard clarified he mis-stated this earlier and advised he feels they can continue to provide adequate control services, noting they are now fully staffed after being short-handed for several months and also noting funding available through the 5th penny sales tax. Comment followed regarding response to calls by Animal Control officers vs. police officers with Mr. Collard providing information on non-emergency vs. emergency calls relative to response involving police officers. Upon inquiry, Mr. Collard explained the agreement term is from July 1, 2010 through June 30, 2011 and that the item was late being placed on the Council agenda due to a lot of discussion on the proposed agreement, and verified the Shelter has not had a reduction in funding from the County’s portion. Main

motion carried. Voting “yes” – all members of the governing body present with Dr. Rinne voting “no”. (#5597)

Professional Services Agreement/Contract between City of Cheyenne, Parks & Recreation Department and S&S Builders, Inc., for building improvements at the Pioneer Park Center, 1331 Talbot Court, Cheyenne, WY (2007-2010 1% Optional Sales Tax and CDBG grant funds). Todd Feezer, Asst. Director, Parks and Recreation, explained the agreement/contract is to provide repairs to extend the life of the facility and requested a proposed substitute be approved as he inadvertently omitted Federal language in the initial document which is required due to CDBG grant funds. He further explained Federal requirements involving the Davis-Bacon Act and amount of wages that must be paid for labor provided under the contract, and stated this requirement increases the total amount of the agreement/contract by \$2,495.00. Mr. Valdez moved to approve in an amount not to exceed \$77,380.00, seconded by Mr. Collins. Mr. Valdez moved to amend by substitute, seconded by Mr. Collins. Mayor Kaysen clarified the amendment would include the additional \$2,495.00 for a total amount of \$79,875.00. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5598)

[CA] Agreement between the City of Cheyenne and Frontier Refining, Inc., designating Frontier Refining Inc. as the title sponsor of the annual Superday event for 2011, 2012 and 2013. Motion (per Consent Agenda) carried. (#5599)

[CA] Agreement between the City of Cheyenne and Sprint Communications Company L.P., for limited use of the public right-of-way for Telecommunications Cable and Facilities. Motion (per Consent Agenda) carried. (#5600)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, for juvenile probation services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and the State of Wyoming, Department of Family Services, for intensive support mentoring program for youth in the juvenile court system -- referred to Finance Committee.

[CA] Employment contract between the Cheyenne Police Department and Alicia ‘Lisa’ Scholz for suicide and substance abuse prevention program management services (Core Prevention Grant) -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and Laura Chalstrom, Beth Chalstrom and Paul Guyot, d/b/a Putt Hutt, for premises used as a miniature golf course in Lions Park -- referred to Finance Committee.

[CA] Employment contract between the City of Cheyenne and Jessica Friis for education services at the Paul Smith Children's Village at Cheyenne Botanic Gardens -- referred to Finance Committee.

[CA] Contract Modification #2 to Contract #5447 (City Clerk note: Correct Contract # is 5446) between the City of Cheyenne and Laramie County Community Partnership to change the name of contracting agency from Laramie County Community Partnership to Connection Corner. Motion (per Consent Agenda) carried. (#5446)

[CA] Contract Modification #2 to Contract #5563 between the City of Cheyenne and JTL Group, Inc.d/b/a Knife River for the construction of the 2009 Cheyenne Transit Program Bus Stop Upgrades Project (Federal Transportation Administration/American Recovery and Reinvestment Act funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-8-11 for furnishing two new 2010/2011 diesel powered trucks to the City of Cheyenne Public Works Department for use by the Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (amount not to exceed \$243,426.00, Peterbilt of Wyoming).

[CA] Consideration of Bid #R-4-11 for Surplus Sale of five reproduction McClellan Early 1900's Model saddles from the City of Cheyenne Police Department – referred to Finance Committee.

[CA] Consideration of Bid #R-11-11 for furnishing ammunition for the Police Department submitted by BVAC, Inc., Stevensville, MT, and GT Distributors, Inc., Austin, TX – referred to Finance Committee.

Announcement was made of a Public Hearing to be held October 25, 2010 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Soo Hyun Choi, LLC d/b/a Tokyo Bowl, 1829 Dell Range Boulevard, Cheyenne, WY. (License currently held by Iron Chefs, Inc. d/b/a Tokyo Bowl, 1829 Dell Range Boulevard, Cheyenne, WY.)

Announcement was made of the appointment of Michael Godown to the Tourism Promotion Joint Powers Board, and Tim Thorson to the City-County Health Board, to be confirmed October 25, 2010. Under other business and upon inquiry relative to whether Mr. Thorson, a candidate running for an elected position involving the Board's jurisdiction, would be able to serve on the Board if elected, Mayor Kaysen expressed his belief that, if elected, the individual may need to resign from the Board.

Announcement was made of the appointment of Kadi Davis, Ian Dome, Jay Egan-Wright, Karolyn Hopfensperger, Dean Jackson, John Matsen, Bobby McGarry, Monica Mencer, McKinzea Olsen, Jacob Peterson Gary Sayler, Isaiah Sims, Josh Walker, and Sabrina Westover to the Mayor's Youth Council, to be confirmed October 25, 2010.

Under other business:

Amy Threewitt, commented on the loss of a downtown grocery store since the Safeway Store was sold and the burden to low income and elderly individuals who live in the area who depended on the store. She requested review of a possible direct transit bus route to grocery stores on Saturdays. James Perot McNeil agreed with the need to have a downtown grocery store and noted his property concerns in the downtown area. Jan Nelson-Schroll questioned whether there were any initiatives or pending information on efforts toward another grocery store in the downtown area. Mayor Kaysen advised staff has been in communications with parties interested in the topic and that review will be made with regard to transit bus services to grocery stores on Saturdays, stating there is currently a daily route to grocery stores during the week. Comment was made in support of transit services to groceries stores on a regular basis.

Mayor Kaysen expressed appreciation to Frontier Refining, Inc. for their continued funding support as title sponsor of the City's Superday event for years 2011-2013.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:16 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
October 20, 2010